THE VAN (SANRAKSHAN EVAM SAMVARDHAN) ADHINIYAM, 1980

ARRANGEMENT OF SECTIONS

SECTIONS

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THE VAN (SANRAKSHAN EVAM SAMVARDHAN) ADHINIYAM, 1980

ACT NO. 69 OF 1980

[27*th December*, 1980.]

An Act to provide for the conservation of forests and for matters connected therewith or ancillary or incidental thereto.

[1][WHEREAS, the importance of forests is to be realised to enable achievement of national targets of Net Zero Emission by 2070 and maintain or enhance the forest carbon stocks through ecologically balanced sustainable development;

AND WHEREAS, *[Nationally] Determined Contribution targets of the country envisage creating carbon sink of additional 2.5 to 3.0 billion tons of CO_2 equivalent by 2030;

AND WHEREAS, the country envisages an increase in the forest and tree cover to one-third of its land area, which is to be given impetus with an enhanced growth trajectory;

AND WHEREAS, India has a rich tradition of preserving forests and their bio-diversity, and, therefore, enhancing forest based economic, social and environmental benefits, including improvement of livelihoods for forest dependent communities is envisaged;

AND WHEREAS, it is necessary to provide for provisions relating to conservation management and restoration of forests, maintaining ecological security, sustaining cultural and traditional values of forests and facilitating economic needs and carbon neutrality.]

BE it enacted by Parliament in the Thirty-first Year of the Republic of India as follows:—

1. Short title, extent and commencement.—(*1*) This Act may be called the [2][*Van* (*Sanrakshan Evam Samvardhan*) *Adhiniyam*], 1980.

(*2*) It extends to the whole of India [3]***.

(*3*) It shall be deemed to have come into force on the 25th day of October, 1980.

[4][**1A. Act to cover certain land.**—(*1*) The following land shall be covered under the provisions of this Act, namely:—

(*a*) the land that has been declared or notified as a forest in accordance with the provisions of the Indian Forest Act, 1927 (16 of 1927) or under any other law for the time being in force;

(*b*) the land that is not covered under clause (*a*), but has been recorded in Government record as forest, as on or after the 25th October, 1980:

Provided that the provisions of this clause shall not apply to such land, which has been changed from forest use to use for non-forest purpose on or before the 12th December, 1996 in pursuance of an order, issued by any authority authorised by a State Government or an Union territory Administration in that behalf.

Explanation.—For the purposes of this sub-section, the expression "Government record" means record held by Revenue Department or Forest Department of the State Government or Union territory Administration, or any authority, local body, community or council recognised by the State Government or Union territory Administration.

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1. Ins. by Act 15 of 2023, s. 2 (w.e.f. 1-12-2023).
2. Subs. by s. 3, *ibid*., for "Forest (Conservation) Act" (w.e.f. 1-12-2023).
3. The words "except the State of Jammu and Kashmir" omitted by Act 34 of 2019, s. 95 and the Fifth Schedule (w.e.f. 31-10- 2019).
4. Ins. by Act 15 of 2023, s. 4 (w.e.f. 1-12-2023).

* Corrected by corrigendum dated 4th August 2023, for "Nationality".

(*2*) The following categories of land shall not be covered under the provisions of this Act, namely:—

(*a*) such forest land situated alongside a rail line or a public road maintained by the Government, which provides access to a habitation, or to a rail, and roadside amenity up to a maximum size of 0.10 hectare in each case;

(*b*) such tree, tree plantation or reafforestation raised on lands that are not specified in clause (*a*) or clause (*b*) of sub-section (*1*); and

(*c*) such forest land,—

(*i*) as is situated within a distance of one hundred kilometres along international borders or Line of Control or Line of Actual Control, as the case may be, proposed to be used for construction of strategic linear project of national importance and concerning national security; or

(*ii*) up to ten hectares, proposed to be used for construction of security related infrastructure; or

(*iii*) as is proposed to be used for construction of defence related project or a camp for paramilitary forces or public utility projects, as may be specified by the Central Government, the extent of which does not exceed five hectares in a Left Wing Extremism affected area as may be notified by the Central Government.

(*3*) The exemption provided under sub-section (*2*) shall be subject to such terms and conditions, including the conditions of planting trees to compensate felling of trees undertaken on the lands, as the Central Government may, by guidelines, specify.]

2. Restriction on the dereservation of forests or use of forest land for non-forest purpose.—[1][(*1*)] Notwithstanding anything contained in any other law for the time being in force in a State, no State Government or other authority shall make, except with the prior approval of the Central Government, any order directing—

(*i*) that any reserved forest (within the meaning of the expression "reserved forest" in any law for the time being in force in that State) or any portion thereof, shall cease to be reserved;

(*ii*) that any forest land or any portion thereof may be used for any non-forest purpose.

[2][(*iii*) that any forest land or any portion thereof may be assigned by way of lease or otherwise to any private person or to any authority, corporation, agency or any other organization [3][subject to such terms and conditions, as the Central Government may, by order, specify];

(*iv*) that any forest land or any portion thereof may be cleared of trees which have grown naturally in that land or portion, for the purpose of using it for reafforestation.]

[4][*Explanation.*—For the purposes of this section "non-forest purpose" means the breaking up or clearing of any forest land or portion thereof for—

(*a*) the cultivation of tea, coffee, spices, rubber, palms, oil-bearing plants, horticultural crops or medicinal plants;

(*b*) any purpose other than reafforestation,

[5][but does not include any work relating to or ancillary to conservation, development and management of forests and wildlife, such as—

1. Section renumbered as sub-section (1) by Act 15 of 2023, s. 5 (w.e.f. 1-12-2023).
2. Ins. by Act 69 of 1988, s. 2 (w.e.f. 15-3-1989).
3. Subs. by Act 15 of 2023, s. 5, for "not owned, managed or controlled by Government" (w.e.f. 1-12-2023)
4. Subs. by Act 69 of 1988, s. 2, for the *Explanation* (w.e.f. 15-3-1989).
5. Subs. by Act 15 of 2023, s. 5, for the long line (w.e.f. 1-12-2023).

(*i*) silvicultural operations including regeneration operations;

(*ii*) establishment of check-posts and infrastructure for the front line forest staff;

(*iii*) establishment and maintenance of fire lines;

(*iv*) wireless communications;

(*v*) construction of fencing, boundary marks or pillars, bridges and culverts, check dams, waterholes, trenches and pipelines;

(*vi*) establishment of zoo and safaris referred to in the Wild Life (Protection) Act, 1972 (53 of 1972), owned by the Government or any authority, in forest areas other than protected areas;

(*vii*) eco-tourism facilities included in the Forest Working Plan or Wildlife Management Plan or Tiger Conservation Plan or Working Scheme of that area; and

(*viii*) any other like purposes, which the Central Government may, by order, specify.]]

[1][(*2*) The Central Government may, by order, specify the terms and conditions subject to which any survey, such as, reconnaissance, prospecting, investigation or exploration including seismic survey, shall not be treated as non-forest purpose.]

[2][**2A. Appeal to National Green Tribunal**.—Any person aggrieved, by an order or decision of the State Government or other authority made under section 2, on or after the commencement of the National Green Tribunal Act, 2010, may file an appeal to the National Green Tribunal established under section 3 of the National Green Tribunal Act, 2010, in accordance with the provisions of that Act.]

3. Constitution of Advisory Committee.—The Central Government may constitute a Committee consisting of such number of persons as it may deem fit to advise that Government with regard to—

(*i*) the grant of approval under section 2; and

(*ii*) any other matter connected with the conservation of forests which may be referred to it by the Central Government.

[3][**3A. Penalty for contravention of the provisions of the Act.—**Whoever contravenes or abets the contravention or any of the provisions of section 2, shall be punishable with simple imprisonment for a period which may extend to fifteen days.

3B. Offences by authorities and Government departments.—(*1*) Where any offence under this Act has been committed—

(*a*) by any department of Government, the head of the department; or

(*b*) by any authority, every person who, at the time the offence was committed, was directly in charge of, and was responsible to, the authority for the conduct of the business of the authority as well as the authority,

shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render the head of the department or any person referred to in clause (*b*), liable to any punishment if the proves that the offence was committed without his knowledge or that exercised all due diligence to prevent the commission of such offence.

(*2*) Notwithstanding anything contained in sub-section (*1*), where an offence punishable under the Act has been committed by a department of government or any authority referred to in clause (*b*) of sub-section (*1*) and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any neglect on the part, of, any officer, other than the head of the department, or in the case of an authority, any person other than the persons referred to in clause (*b*) of sub-section (*1*), such

1. Ins. by Act 15 of 2023, s. 5 (w.e.f. 1-12-2023).
2. Ins. by Act 19 of 2010, s. 36 and Schedule III (w.e.f. 18-10-2010).
3. Ins. by Act 69 of 1988, s. 3. (w.e.f. 15-3-1989).

officer or persons shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.]

[1][**3C. Power of Central Government to issue directions.—**The Central Government may, from time to time, issue such directions, to any authority under the Central Government, State Government or Union territory Administration, or to any organisation, entity or body recognised by the Central Government, State Government or Union territory Administration, as may be necessary for the implementation of this Act.]

4. Power to make rules.—(*1*) The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(*2*) Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

5. Repeal and saving.—(*1*) The Forest (Conservation) Ordinance, 1980 (17 of 1980) is hereby repealed.

(*2*) Notwithstanding such repeal, anything done or any action taken under the provisions of the said Ordinance shall be deemed to have been done or taken under the corresponding provisions of this Act.

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1. Ins. by Act 15 of 2023, s. 6 (w.e.f. 1-12-2023).